

25VECV04782 25VECV04782

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-29

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Case Number: 25VECV04782 Hearing Date: July 29, 2026 Dept: T

25VECV04782 Le v Atlas

[TENTATIVE] ORDER: Defendants Atlas Supply LLC and Ross Kemper's Demurrer to the First Amended Complaint is OVERRULED.

Defendants Atlas Supply LLC and Ross Kemper's Motion to Strike Portions of the First Amended Complaint is GRANTED WITH 20 DAYS LEAVE TO AMEND.

Introduction

Defendants Atlas Supply LLC (Atlas) and Ross Kemper (Kemper) (collectively, Defendants) demurred to Plaintiff Tommy Le's (Plaintiff) First Amended Complaint. Defendants demurred to the first cause of action (COA) for breach of written contract, and the second COA for violation of the Uniform Voidable Transfers Act (UVTA). Defendants further moved to strike the request for punitive damages in the second COA.

Discussion

Kemper argued that the first COA for breach of contract fails to plead sufficient facts because the attached contract shows that Kemper is not a contracting party and there are insufficient facts to support the alter ego theory of liability. The allegations in the FAC submit that Kemper is not a contracting party and Kemper's first argument is a non-sequitur. Plaintiff alleged liability against Kemper based upon the alter ego theory of liability. (FAC pars. 17-24.) To establish alter ego liability, a plaintiff must plead facts demonstrating both (1) a unity of interest and ownership such that the separate personalities of the entity and the individual do not exist, and (2) that an inequitable result would follow if the acts are treated as those of the entity alone. (JPV I L.P. v. Koetting (2023) 88 Cal.App.5th 172, 189.) Plaintiff expressly alleged that Kemper is the sole owner/controller/manager of Atlas and Kemper withdrew all proceeds held by Atlas to Kemper's own personal account. (FAC pars. 17-18, 22.) These fact allegations are deemed true for demurrer purposes and are not conclusory. Plaintiff further alleged inequity if the acts are treated as those of the entity alone. Plaintiff alleged that creditors, like Plaintiff, were and/or would be deceived. (FAC par. 19, 23.) Kemper's argument against the alter ego allegations is unpersuasive.

Kemper's demurrer to the first COA is OVERRULED.

Defendants argued that the second COA for UVTA violation is insufficiently supported with fact pleading because a specific transfer is not alleged, including the transferor, the transferee, asset transferred, and the timing of the transfer. The pleading elements for a UVTA claim are: (1) That plaintiff has a right to payment from debtor for a specified amount; (2) That debtor

transferred property/incurred an obligation to defendant; (3) That debtor transferred the property/incurred the obligation with the intent to hinder, delay, or defraud one or more of its creditors; (4) That plaintiff was harmed; and (5) That debtor's conduct was a substantial factor in causing plaintiff's harm. (CACI no. 4200.) Plaintiff sufficiently alleged that Atlas is the debtor and Atlas transferred its monies to Kemper, the transferee. (FAC pars. 19 and 20.) Plaintiff expressly alleged that Atlas transferred monies owed to Plaintiff to Kemper, specifically the amount in damages is \$1,181,647.45. (FAC par. 16.) It is noted that Plaintiff grouped the two defendants together in FAC par. 32. However, when read together with all the other allegations, the allegations are sufficient to place both Defendants on notice that Atlas is the alleged transferor and Kemper is the transferee. The FAC sufficiently alleges these pleading elements. As to Defendants argument that the timing of the transfer is not alleged, the Court notes that the specific time when the voidable transfer occurred is not a pleading element and not sufficient to support the demurrer.

The demurrer to the second COA is OVERRULED.

Defendants moved to strike Plaintiff's request for punitive damages under the UVTA COA. The express remedies under the UVTA are: (1) avoidance of a transfer, obligation or lien; (2) attachment; (3) injunction against further disposition or transfer of assets; (4) appointment of a receiver; (5) execution on a transferred asset or its proceeds (where the creditor has obtained judgment on an underlying claim). (Civ Code., sec. 3439.07.) The UVTA does not authorize punitive damages. Plaintiff's reliance upon the definition for punitive damages (Civ. Code, sec. 3294) is not persuasive to show that punitive damages can be awarded under a UVTA COA. Defendants' argument as to punitive damages is persuasive and Plaintiff fails to present legal authority to support their contention that a remedy for UVTA is punitive damages.

Because this is the Court's first review of the pleading, the Court grants Plaintiff leave to amend to support the punitive damages claim.

The motion to strike is GRANTED WITH LEAVE TO AMEND.